

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Trevor Hackett	Team: Squad #13	CCRB Case #: 202004122	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 06/01/2020 8:23 PM, Monday, 06/01/2020 8:23 PM, Monday, 06/01/2020 9:00 PM	Location of Incident: East Fordham Road and Valentine Avenue; En route to and at the 46 Precinct stationhouse	Precinct: 46	18 Mo. SOL 12/1/2021	EO SOL 5/4/2022	
Date/Time CV Reported Mon, 06/08/2020 1:20 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 06/08/2020 1:20 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Maria Vasquez	16930	966900	046 PCT
2. An officer			
3. POF Yesenia Rosado	19497	959951	046 PCT
4. POM Jose Quiroz	06870	961136	046 PCT
5. Officers			
6. SSA Vladimir Garcia	04857	941021	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Luis Sotomayor	21209	959262	046 PCT
2. POM Gavin Maher	07294	964629	046 PCT
3. POM Rafael Lara	00937	956825	046 PCT
4. CPT Carlos Peralta	00000	946531	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POF Yesenia Rosado	Force: At East Fordham Road and Valentine Avenue in the Bronx, Police Officer Yesenia Rosado struck § 87(2)(b) with a nightstick/asp/baton.	
B.POF Yesenia Rosado	Force: At East Fordham Road and Valentine Avenue in the Bronx, Police Officer Yesenia Rosado used physical force against § 87(2)(b) § 87(2)(b)	
C.POF Yesenia Rosado	Force: At East Fordham Road and Valentine Avenue in the Bronx, Police Officer Yesenia Rosado used physical force against § 87(2)(b) § 87(2)(b)	
D.POF Yesenia Rosado	Force: At East Fordham Road and Valentine Avenue in the Bronx, Police Officer Yesenia Rosado restricted § 87(2)(b) § 87(2)(b)'s breathing.	
E. Officers	Force: At East Fordham Road and Valentine Avenue in the Bronx, officers used physical force against § 87(2)(b) § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
F. An officer	Force: At East Fordham Road and Valentine Avenue in the Bronx, an officer used physical force against § 87(2)(b) § 87(2)(b)	
G. An officer	Force: At East Fordham Road and Valentine Avenue in the Bronx, an officer restricted § 87(2)(b) § 87(2)(b)'s breathing.	
H.POM Jose Quiroz	Discourtesy: En route to the 46th Precinct stationhouse, Police Officer Jose Quiroz spoke discourteously to § 87(2)(b) § 87(2)(b)	
I.POM Jose Quiroz	Discourtesy: At the 46th Precinct stationhouse, Police Officer Jose Quiroz spoke discourteously to § 87(2)(b) § 87(2)(b)	
J.POF Maria Vasquez	Abuse: At the 46th Precinct stationhouse, Police Officer Maria Vasquez strip-searched § 87(2)(b) § 87(2)(b)	
K.POF Maria Vasquez	Abuse: At the 46th Precinct stationhouse, Police Officer Maria Vasquez did not obtain medical treatment for § 87(2)(b) § 87(2)(b)	
§ 87(2)(b), § 87(4-b), § 87(2)(g)		
	§ 87(2)(b)	

Case Summary

On June 8, 2020, § 87(2)(b) filed this complaint via the CCRB website on behalf of herself and her § 87(2)(b)-year-old daughter, § 87(2)(b) § 87(2)(b).

On June 1, 2020, § 87(2)(b) and § 87(2)(b) were marching westbound on East Fordham Road in the Bronx in a Black Lives Matter protest when, at the intersection of East Fordham Road and Valentine Avenue, § 87(2)(b) threw a bag of seafood toward a patrol car. Police Officer Yesenia Rosado of the 46th Precinct, identified via investigation, approached § 87(2)(b) who grabbed onto § 87(2)(b). PO Rosado placed her baton between the two women, pulled § 87(2)(b) away from § 87(2)(b) and pushed § 87(2)(b) to the ground (**Allegations A and B – Force**, § 87(2)(g)). While on the ground, PO Rosado placed her knee on § 87(2)(b)'s back, which restricted her breathing (**Allegation C and D – Force**, § 87(2)(g)). Two unidentified officers forcibly took § 87(2)(b) to the ground (**Allegation E – Force** – § 87(2)(g)) and an unidentified officer placed their knee on § 87(2)(b)'s back, which restricted her breathing (**Allegation F and G – Force**, § 87(2)(g)).

§ 87(2)(b) and § 87(2)(b) were placed in a patrol car and transported to the 46th Precinct stationhouse by Police Officer Maria Vasquez and Police Officer Jose Quiroz, both of the 46th Precinct. En route to the stationhouse, PO Quiroz spoke discourteously to § 87(2)(b) (**Allegation H – Discourtesy**, § 87(2)(g)). At the stationhouse, PO Quiroz spoke discourteously to § 87(2)(b) (**Allegation I – Discourtesy**, § 87(2)(g)) and PO Vasquez allegedly strip-searched § 87(2)(b) (**Allegation J – Abuse of Authority**, § 87(2)(g)). PO Vasquez refused § 87(2)(b)'s request for medical attention (**Allegation K – Abuse of Authority**, § 87(2)(g)). § 87(2)(b) and § 87(2)(b) were each ultimately issued summonses for disorderly conduct and failure to disperse and were released from the stationhouse.

§ 87(2)(b), § 87(4-b), § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) were unable to provide photos of their summonses or the summons numbers to the investigation, and a request to the NYPD for copies of the summonses was returned negative (**Board Review 01, 02**), though PO Vasquez confirmed they were issued. Without the summons numbers, the Office of Court Administration database could not be queried, and the summons dispositions therefore remain unknown.

Body Worn Camera (“BWC”) footage was obtained from PO Vasquez, PO Rosado, PO Quiroz as well as Captain Carlos Peralta, and Police Officer Rayon Grant, also of the 46th Precinct. The BWC footage is located in IAs #37, 53, 54, 82, and 83 (**Board Review 03, 04, 05, 06, 07**), and is summarized in IA# 248 (**Board Review 08**). Stationhouse footage of the 46th Precinct holding cell area was obtained. The stationhouse footage is located in IAs #265, 266, and 268 (**Board Review 09, 10, 11**), and is summarized in IAs #58-60 (**Board Review 12, 13, 14**).

Findings and Recommendations

Allegation A - Force: At East Fordham Road and Valentine Avenue in the Bronx, Police Officer Yesenia Rosado struck § 87(2)(b) with an asp.

Allegation B - Force: At East Fordham Road and Valentine Avenue in the Bronx, Police Officer Yesenia Rosado used physical force against § 87(2)(b) § 87(2)(b)

Allegation C - Force: At East Fordham Road and Valentine Avenue in the Bronx, Police Officer Yesenia Rosado used physical force against § 87(2)(b) § 87(2)(b)

Allegation D – Force: At East Fordham Road and Valentine Avenue in the Bronx, Police Officer Yesenia Rosado restricted § 87(2)(b) § 87(2)(b) s breathing.

Allegation E- Force: At East Fordham Road and Valentine Avenue in the Bronx, officers used physical force against § 87(2)(b) § 87(2)(b) .

Allegation F- Force: At East Fordham Road and Valentine Avenue in the Bronx, an officer used physical force against § 87(2)(b) § 87(2)(b) .

Allegation G- Force: At East Fordham Road and Valentine Avenue in the Bronx, an officer restricted § 87(2)(b) § 87(2)(b) s breathing.

It is undisputed that on the evening of this incident, a large crowd had amassed on Fordham Road, and a disorderly group of individuals were breaking into stores, damaging property, and throwing objects at officers. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) § 87(2)(b) stated that she and § 87(2)(b) § 87(2)(b) were standing in front of a Bank of America and crossed the street to get away from individuals who began breaking storefront windows. § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b) stood across the street for approximately 20 minutes watching these events unfold. § 87(2)(b) § 87(2)(b) picked up a bag of food and threw it towards a parked police vehicle. She could not explain why she did this. PO Rosado, identified via investigation, and an unidentified officer, PO1 approached. PO Rosado and PO1 did not issue § 87(2)(b) § 87(2)(b) or § 87(2)(b) § 87(2)(b) any commands prior to approaching them. § 87(2)(b) § 87(2)(b) turned away from PO Rosado and grabbed onto § 87(2)(b) § 87(2)(b) who was standing next to her. During her CCRB interview, § 87(2)(b) § 87(2)(b) said that seconds later, PO Rosado tackled her, making contact with the right side of her body, and causing her to land on her right side. During a follow-up phone statement, § 87(2)(b) § 87(2)(b) said that when she grabbed onto § 87(2)(b) § 87(2)(b) PO Rosado ordered her to get onto the ground, which she did immediately and voluntarily. § 87(2)(b) § 87(2)(b) said PO Rosado did not forcibly take her to the ground. Rather, PO Rosado “nudged” § 87(2)(b) § 87(2)(b) s back as she was getting on the ground. § 87(2)(b) § 87(2)(b) said this action was not forceful and she believed it was intended to get her to hurry up.

§ 87(2)(b) § 87(2)(b) said that once on the ground, PO Rosado handcuffed § 87(2)(b) § 87(2)(b) § 87(2)(b) did not resist or move her body. PO Rosado placed her knee in the center of § 87(2)(b) § 87(2)(b) s back, which made it difficult for her to breathe, and kept it there for the approximately three to five minutes. § 87(2)(b) § 87(2)(b) could speak, but she did not complaint to PO Rosado about having difficulty breathing because she did not think PO Rosado would care. Seconds after PO Rosado handcuffed § 87(2)(b) § 87(2)(b) PO1 tackled § 87(2)(b) § 87(2)(b) making contact with her right side, and brought her to the ground. § 87(2)(b) § 87(2)(b) landed on her stomach. However, § 87(2)(b) § 87(2)(b) did not see how or which officers took § 87(2)(b) § 87(2)(b) to the ground because she was focused on what was happening to her (Board Review 15, 16).

During her CCRB interview, § 87(2)(b) § 87(2)(b) said she did not witness PO Rosado’s interactions with § 87(2)(b) § 87(2)(b) but that seconds after § 87(2)(b) § 87(2)(b) threw the bag of food, PO Rosado and PO1 approached § 87(2)(b) § 87(2)(b) and one of them tackled her, hitting her on the right side of her body. § 87(2)(b) § 87(2)(b) landed face-down on her stomach. Neither § 87(2)(b) § 87(2)(b) nor § 87(2)(b) § 87(2)(b) had been issued any commands. § 87(2)(b) § 87(2)(b) believed she sustained a fracture on her right pinky finger as a result. She could not describe how she sustained this injury and she did not seek medical attention for it. During a follow-up phone statement, § 87(2)(b) § 87(2)(b) clarified that two officers whom she did not see, approached her from behind, grabbed her by her wrists and threw her to the ground. § 87(2)(b) § 87(2)(b) said the officers “bum rushed her,” but could not elaborate further on what exact contact the officers made with her. Once on the ground, § 87(2)(b) § 87(2)(b) immediately put her hands behind her back and did not resist. An officer placed their knee on § 87(2)(b) § 87(2)(b) s back and handcuffed her. § 87(2)(b) § 87(2)(b) could not recall where on her back the officer’s knee made contact, but said it remained

there for one minute and made it difficult for her to breathe. § 87(2)(b) screamed at the officer was about being on the ground but did not complain of having difficulty breathing (**Board Review 17, 18**).

PO Rosado testified that she witnessed § 87(2)(b) throw a bag at her and Captain Peralta, and that the bag landed on the ground next to them. Cpt. Peralta ordered PO Rosado to arrest § 87(2)(b) who was standing next to § 87(2)(b). As PO Rosado approached, § 87(2)(b) saw her coming and tightly hugged § 87(2)(b). Without saying anything to § 87(2)(b) or § 87(2)(b), PO Rosado grabbed § 87(2)(b) by her sweater and placed her baton between the two women. PO Rosado ordered § 87(2)(b) to let go of § 87(2)(b) but they refused to let go of each other. PO Rosado attempted to pull § 87(2)(b) away from § 87(2)(b) by § 87(2)(b)'s sweater, so she could take § 87(2)(b) to the ground, but while PO Rosado pulled her, § 87(2)(b) tripped and fell to the ground on her own. As a result of PO Rosado maintaining her hold on § 87(2)(b), PO Rosado was pulled down to one knee. PO Rosado placed her baton between § 87(2)(b) and § 87(2)(b) and pulled § 87(2)(b)'s sweater in order to "guide" them apart. PO Rosado did not make any other physical actions to separate § 87(2)(b) from § 87(2)(b).

PO Rosado said that once § 87(2)(b) was on the ground on her stomach, she became compliant and put her hands behind her back. PO Rosado did not recall placing her knee on § 87(2)(b)'s back. § 87(2)(b) was handcuffed, then lifted to her feet and handed off to PO Vasquez and PO Quiroz, identified via investigation, for transport to the 46th Precinct stationhouse. PO Rosado was the only officer involved in arresting § 87(2)(b) and she did not know if any officer interacted with § 87(2)(b) or if § 87(2)(b) was also arrested (**Board Review 19**).

Cpt. Peralta testified that there were over 50 arrests in the vicinity of the incident location that evening. Cpt. Peralta acknowledged instructing officers to make arrests throughout the course of the evening, but he did not recall giving instructions to arrest anyone for throwing an object and he did not recall witnessing anyone be placed under arrest for this reason. Cpt. Peralta did not recall seeing § 87(2)(b) or § 87(2)(b) that evening, or seeing any officer use physical force against them or restrict their breathing (**Board Review 20, 21**).

PO Vasquez, Sgt. Garcia, PO Sotomayor, and PO Lara all acknowledged being present at the incident location, but none of them recalled seeing § 87(2)(b) or § 87(2)(b) there, and they denied participating in or witnessing anyone use physical force against them or restrict their breathing (**Board Review 22, 23, 24, 25**).

PO Rosado's BWC footage begins with PO Rosado's right hand, in which she is holding her baton, on § 87(2)(b)'s back as § 87(2)(b) is standing upright. PO Rosado pushes § 87(2)(b) to the ground. The right side of § 87(2)(b)'s sweater is visibly being pulled, though PO Rosado's left hand is out of frame. § 87(2)(b) lies face down on the ground for approximately 32 seconds. During this time, PO Rosado's asp, which she is holding in her left hand, is against § 87(2)(b)'s back for approximately six seconds until she hands it to an officer and handcuffs § 87(2)(b). PO Rosado does not appear to be exerting any pressure onto § 87(2)(b)'s back with her asp. Though there is no audio for this segment of the footage, § 87(2)(b) appears to be speaking and trying to give her phone to someone. PO Rosado escorts § 87(2)(b) to a patrol car and while doing so, § 87(2)(b) yells obscenities at officers and does not appear to be out of breath. The video does not clearly depict whether PO Rosado's knee makes contact with § 87(2)(b)'s back while § 87(2)(b) is on the ground because § 87(2)(b)'s back is not fully visible for most of the footage. The footage does not capture § 87(2)(b) (**Board Review 04**).

No other BWC footage captured these aspects of the incident, and a request for TARU footage

yielded negative results (**Board Review 37**). Additionally, there were no nearby surveillance cameras that would have captured this incident. § 87(2)(b) said she recorded the events leading up to the incident on her cell phone, but she was uncooperative with providing this footage to the investigation (see IAs for contact attempts). Searches of social media revealed footage of the property destruction, looting, and fires on Fordham Road detailed in the civilian and officer statements (**Board Review 39, 42, 43**). However, this footage does not capture § 87(2)(b)s and § 87(2)(b)s interactions with officers.

Requests for TRI Reports prepared for § 87(2)(b) and § 87(2)(b) yielded negative results (see Allegation L) (**Board Review 40, 26**).

NYPD Patrol Guide, Procedure 221-01 states that officers may use force when it is reasonable to put someone in custody, or to prevent their escape from custody. In all cases, the application or use of force must be reasonable under the circumstances (**Board Review 27**).

§ 87(2)(b), § 87(2)(g)

[REDACTED]

§ 87(2)(b), § 87(2)(g)

[REDACTED]

§ 87(2)(b), § 87(2)(g)

[REDACTED]

Allegation H – Discourtesy: En route to the 46th Precinct stationhouse, Police Officer Jose Quiroz spoke discourteously to § 87(2)(b) § 87(2)(b)

Allegation I – Discourtesy: At the 46th Precinct stationhouse, Police Officer Jose Quiroz spoke discourteously to § 87(2)(b) § 87(2)(b)

§ 87(2)(b) stated that in the patrol car, en route to the 46th Precinct stationhouse, she screamed at PO Vasquez and PO Quiroz, identified via investigation, to let her out of the car and to tell her why

she was arrested. PO Vasquez ordered § 87(2)(b) to stop screaming. § 87(2)(b) told PO Vasquez to shut up and leave her alone. PO Quiroz told § 87(2)(b) to “shut the fuck up.” § 87(2)(b) did not mention hearing any officer speak discourtesy to § 87(2)(b) nor did she allege that any officer spoke discourteously to her.

PO Vasquez’s BWC recorded the entire transport from the initial scene to the 46th Precinct stationhouse. Though PO Quiroz is not captured making the exact statement § 87(2)(b) alleged he did, at the 02:20 minute-mark of the media player timestamp, visible at the bottom of the screen, § 87(2)(b) asks if she can use her phone and PO Quiroz says, “You want me to answer your questions with the way you’re fucking talking to me? Who the fuck do you think you are?” Additionally, at 03:41, as PO Quiroz escorts § 87(2)(b) into the stationhouse, § 87(2)(b) yells that she was arrested for no reason and threatens to file a lawsuit against the officers, and PO Quiroz says, “No fucking screaming...stop fucking screaming in here” (**Board Review 03**).

§ 87(2)(b), § 87(2)(g)

Allegation J – At the 46th Precinct stationhouse, Police Officer Maria Vasquez strip-searched

§ 87(2)(b) § 87(2)(b) stated that at the stationhouse, she and § 87(2)(b) were lodged in a holding cell, and at some point, § 87(2)(b) asked PO Vasquez to use the restroom. PO Vasquez took § 87(2)(b) to a restroom near the holding cells. PO Vasquez entered the restroom with § 87(2)(b) and ordered her to lift up her sweater, then her bra. § 87(2)(b) complied. PO Vasquez visually inspected and felt the area underneath § 87(2)(b)’s bra. PO Vasquez told § 87(2)(b) to remove her sneakers and shake them, which § 87(2)(b) did. PO1 and § 87(2)(b) were the only two people in the restroom and they were there for two or three minutes. § 87(2)(b) was only in the restroom with PO Vasquez once during her time at the stationhouse and her undergarments were not exposed at any other point during the incident.

PO Vasquez stated that she and PO Quiroz escorted § 87(2)(b) and § 87(2)(b) to the restroom in the holding cell area to conduct a procedural search before lodging them in a holding cell. PO Vasquez was alone with § 87(2)(b) in the restroom and she instructed § 87(2)(b) to remove her shoes and any other items such as her belt, watch, etc. that were prohibited in the holding cells. Following procedure, PO Vasquez then patted down § 87(2)(b) and searched her pockets. PO Vasquez denied ordering § 87(2)(b) to lift up her shirt or bra, she denied that § 87(2)(b)’s undergarments were exposed in the restroom, she denied physically touching § 87(2)(b) underneath her bra, and she denied that § 87(2)(b) was ever strip-searched. PO Vasquez said this was the only time she and § 87(2)(b) were in a restroom together.

PO Vasquez’s BWC footage captures the time from when § 87(2)(b) is first escorted inside the stationhouse until she is lodged in a holding cell. The footage is consistent with PO Vasquez’s statement and shows that, between the 13:25 minute-mark of the media player timestamp (visible at the bottom of the screen), and 16:07, PO Vasquez conducts a procedural search of § 87(2)(b) in the restroom. No strip search takes place (**Board Review 03**).

Stationhouse footage of the holding cell area captures the entire 1 hour and 26-minute period that § 87(2)(b) and § 87(2)(b) were lodged in the holding cell. Aside from the initial time detailed in the BWC footage summary above, § 87(2)(b) was only escorted from the holding cell to the restroom once more. At the 09:38 minute-mark of the media player timestamp, visible at the bottom of the screen, PO Vasquez escorts § 87(2)(b) toward a restroom. § 87(2)(b) enter the restroom

and closes the door behind her. PO Vasquez remains outside. § 87(2)(b) exits the restroom one minute and 49 seconds later. PO Vasquez never enters the restroom during that time (**Board Review 09**).

§ 87(2)(b), § 87(2)(g)

Allegation K – Abuse of Authority: At the 46th Precinct stationhouse, Police Officer Maria Vasquez did not obtain medical treatment for § 87(2)(b) § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) both stated that while lodged in the holding cell, § 87(2)(b) requested medical attention from officers and that they failed to obtain any for her. § 87(2)(b) stated that she needed medical attention for her fractured right pinky finger, which she sustained when officers took her into custody. § 87(2)(b) stated that § 87(2)(b) had not fractured her finger but had broken a fingernail. However, § 87(2)(b) said § 87(2)(b) who suffers from thyroid cancer, requested medical attention because she began to feel dizzy and nauseous. § 87(2)(b) said she requested medical attention from PO Vasquez, PO Quiroz, and three additional male officers, identified via the investigation as PO Sotomayor, PO Lara, and PO Maher. § 87(2)(b) said she witnessed § 87(2)(b) request medical attention from PO Vasquez, PO Quiroz, and PO Sotomayor. § 87(2)(b) did not seek medical attention for her injury following this incident.

The 46th Precinct Prisoner Holding Pen Roster (**Board Review 29**) identified three potential witnesses who were lodged nearby, § 87(2)(b) § 87(2)(b) Steven § 87(2)(b) and § 87(2)(b) § 87(2)(b) but each of them was unavailable to the investigation (See IAs for contact attempts).

PO Vasquez was § 87(2)(b)'s summoning officer, as well as the officer listed on the Prisoner Holding Pen Roster as guarding her during her time in the holding cell. As such, the responsibility for obtaining medical treatment for § 87(2)(b) would have been PO Vasquez's. Therefore, this allegation has solely been pled to her.

PO Vasquez, PO Sotomayor, PO Lara, and PO Maher (**Board Review 30**) all acknowledged being present in the holding cell area the evening this incident took place, but they each denied hearing § 87(2)(b) or § 87(2)(b) complain of any injury or medical condition for which § 87(2)(b) required medical attention. They denied that she looked ill or had any visible injuries, and they did not recall interacting with either § 87(2)(b) or § 87(2)(b) at all in the holding cell area.

Stationhouse footage of the holding cell area shows that between 00:00 and the 01:35:10 marks of the media player timestamp, visible at the bottom of the screen, § 87(2)(b) and § 87(2)(b) are lodged in the holding cell. During this time, PO Vasquez and PO Quiroz speak with § 87(2)(b) several times. At 20:50, PO Vasquez appears to hand § 87(2)(b) a band aid, which § 87(2)(b) opens and wraps around her right pinky finger. The footage also shows three other male officers, identified by the investigation as PO Sotomayor, PO Lara, and PO Maher, who pass § 87(2)(b)'s holding cell at various points throughout the evening. There does not appear to be any communication between § 87(2)(b) § 87(2)(b) and these three officers (**Board Review 10**).

§ 87(2)(b), § 87(2)(g)

[REDACTED]

§ 87(2)(b), § 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(2)(b), § 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have a party (Board Review 31, 32).

- PO Rosado has been a member of service for four years and has been a subject in two additional CCRB complaints comprised of two allegations, neither of which were substantiated. PO Rosado's CCRB history does not reflect any apparent pattern pertinent to this investigation.
- PO Vasquez has been a member-of-service for one year and this is the first CCRB complaint to which she has been a subject.
- PO Quiroz is no longer a member-of-service. This is the first CCRB complaint to which he was a subject.
- Sgt. Garcia has been a member of service for 15 years and has been a subject in eight additional CCRB complaints and 15 additional allegations, of which one was substantiated.:
 - #201207108 involved a substantiated allegation of premises entered and/or searched against Sgt. Garcia. The Board recommended a command discipline and the NYPD imposed instructions.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming personal, emotional and physical injuries, and she is seeking \$500,000 as redress. A 50-H hearing has been scheduled for § 87(2)(b) **(Board Review 38)**.
- According to the Office of Court Administration (OCA), neither § 87(2)(b) nor § 87(2)(b) has any history of convictions in New York City **(Board Review 33, 34)**.

Squad No.: 13

Investigator: _____	Inv. Trevor Hackett	02/25/2021
Signature	Print Title & Name	Date

Squad Leader: _____	IM Laura Kastner	02/25/2021
Signature	Print Title & Name	Date

Reviewer: _____	_____	_____
Signature	Print Title & Name	Date